

TENTATIVE RULING

Artemio Cuellar Garcia, et al.

v.

Lizbeth Cruz Garcia
24CV004962

Minor's Compromise Petition

Hearing Date: August 21, 2026

After reviewing the unopposed minor's compromise petition filed by Plaintiff Artemio Cuellar Garcia ("Plaintiff"), the guardian ad litem for 11-year-old Plaintiff Griselda Cuellar-De La Cruz ("Claimant"), the Court hereby **GRANTS** the petition. The Court will sign the proposed orders approving the disbursement of Claimant's gross settlement proceeds (\$3,500 for fees and \$1,700.24 for medical expenses) and authorizing the deposit of Plaintiff's net settlement funds (\$9,549.76) into an FDIC-insured blocked account at Bank of America, with withdrawals permitted only upon Court approval.

The matter is scheduled for a hearing on **November 20, 2026**, at 8:30 a.m. in Department 14 to present proof of Claimant's deposited funds. Unless the Court orders otherwise, no appearance is required at the November 20th hearing if proof of deposit is filed with the Court before then. [Super. Ct. Monterey County, Local Rules, rule 4.39.]

Further, the Court understands that Plaintiff has also resolved his claims against Defendant Lizbeth Cruz Garcia. If so, Plaintiff shall file a Notice of Settlement of the entire case as soon as practicable. This will enable the Court to set the matter on the dismissal calendar.

NOTE RE TENTATIVE RULING

This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.